

24SMCV03904 24SMCV03904

County: los-angeles

Division: Civil Law and Motion

Department: I

Hearing date: 2026-06-24

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Case Number: 24SMCV03904 Hearing Date: June 24, 2026 Dept: I

This is an unopposed motion for terminating sanctions

brought by plaintiff. Plaintiff served

defendant Avanesyan with written discovery a year ago. Objection-only responses were served. Plaintiff moved to compel further and the

motion was heard and granted. Defense

counsel withdrew, and so plaintiff served the court's order on defendant

directly. There are still no responses. Plaintiff states that this is key discovery

and defendant is just ignoring it. The

court agrees that plaintiff has made out the case.

The court is aware that sanctions are generally done on a

graduating scale. Here, plaintiff leaps

directly from monetary sanctions to terminating sanctions. But the court also notes that defendant is

just ignoring the case and the court's order.

There is not even an opposition to this motion. Accordingly, any proper sanction to deal with

defendant's decision just to ignore the case either must be a terminating

sanction or the equivalent. Therefore,

the motion is GRANTED. The answer will

be STRICKEN and the court will enter a default.

However, the effect of this order will be STAYED for 30 days. If, during that time, defendant brings a

motion for reconsideration explaining why the case and the court's orders are

being ignored, the court will hear the motion before allowing this order to go

into effect. The court also awards

sanctions in the amount of \$2310 against defendant, but not former counsel,

payable within 30 days. The reason for

the reduction is that no reply was needed and there is no justification for

counsel's extremely high hourly rate to draft a relatively straightforward

motion.